THE AKHUWAT INSTITUTE KASUR ACT, 2026

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THE AKHUWAT INSTITUTE KASUR ACT, 2026

ACT NO. XVII OF 2026

[6th March, 2026]

AN

ACT

for the establishment of Akhuwat Institute Kasur

WHEREAS it is expedient to provide for the establishment of Akhuwat Institute Kasur and to provide for matters connected therewith and ancillary thereto:

It is hereby enacted as follows:

CHAPTER I
PRELIMINARY

1. Short title, extent, and commencement.— (1) This Act shall be called the Akhuwat Institute Kasur Act, 2026.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. — In this Act, unless there is anything repugnant in the subject or context,—

(a) "Academic Council" means the Academic Council of the Institute;

(b) "Authority" means any of the Authorities of the Institute specified or set up in terms of section 24;

(c) "Board of Directors" means the Akhuwat Board of Directors;

(d) "Board of Governors" means the Board of Governors of the Institute;

(e) "Chancellor" means the Chancellor of the Institute;

(f) "Commission" means the Higher Education Commission set up under the Higher Education Commission Ordinance, 2002 (LIU of 2002);

(g) "Constituent College" means an educational institution, by whatever name described, maintained and administered by the Institute;

(h) "Dean" means the head of a Faculty or the head of an academic body granted the status of a Faculty by this Act or by the Statutes or Regulations;

(i) "Department" means a teaching department maintained and administered, or recognized by the Institute in the manner prescribed;

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(j) "Director" means the head of an academic or administrative unit established by the Institute by Statutes or Regulations in terms of the powers delegated by this Act;

(k) "Faculty" means an administrative and academic unit of the Institute consisting of one or more departments, as prescribed;

(l) "Government" means the Federal Government;

(m) "Institute" means the Akhuwat Institute Kasur;

(n) "Institute Teacher" means a whole-time teacher appointed and paid by the Institute, or recognized by the Institute as such;

(o) "Patron" means the Patron of the Institute;

(p) "Prescribed" means prescribed by Statutes, Regulations or Rules made under this Act;

(r) "Rector" means the Rector of the institute;

(s) "Representation Committees" means the Representation Committees constituted under section 32;

(t) "Review Panel" means the Review Panel set up by the Board of Directors in accordance with the provisions of this Act;

(u) "Search Committee" means the Search Committee set up by the Board of Directors under this Act;

(v) "Schedule" means a Schedule to this Act;

(x) "Society" means Akhuwat, 19-Civic Centre, Sector 2, Township, Lahore, registered under Societies Registration Act, 1860 with District Officer for Director Admissions and Registration Joint Stock Companies, Lahore vide registration number RP/879-L/S/03/1472;

(x) "Statutes, Regulations and Rules" mean the Statutes, Regulations and Rules made under this Act and for the time being in force; and

(y) "Teachers" include Professors, Associate Professors, Assistant Professors, and lecturers engaged whole-time by the Institute or by a constituent and such other persons as may be declared to be teachers by Regulations.

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CHAPTER-II
PRELIMINARY

THE INSTITUTE

3. Establishment and incorporation of the Institute. (1) There shall be established an Institute to be called the Akhuwat Institute Kasur.

(2) The Institute shall consist of the following, namely,

(a) the Chancellor, the Patron, the members of the Board of Directors, Board of Governors, and the Rector;

(b) the members of the authorities of the Institute established under section 7;

(c) all Institute Teachers and persons recognized as students of the Institute in accordance with terms prescribed from time to time; and

(d) all other full-time officers and members of the staff of the Institute.

(3) The Institute shall be a body corporate by such name as may be notified and shall have perpetual succession and a common seal, and may sue and be sued by the said name.

(4) The Institute shall be competent to acquire and hold property, both moveable and immovable, and to lease, sell or otherwise transfer any movable and immovable property which may have become vested in or been acquired by it.

(5) Notwithstanding anything contained in any other law for the time being in force, the Institute shall have academic, financial and administrative autonomy, including the power to employ officers, teachers and other employees on such terms as may be prescribed, subject to the terms of this Act and the Higher Education Commission Act, 2002 (LIU of 2002). In particular, and without prejudice to the authority granted to the Commission by the law, the Government or an authority or auditor appointed by the Government shall have no power to question the policy underlying the allocation of resources approved by the Board of Directors in the annual budget of the Institute.

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4. Powers and functions of the Institute. The Institute shall have the following powers, namely,

(i) to provide for education and scholarship in such branches or knowledge as it may deem fit, and to make provision for research, service to society and, for the application, advancement and dissemination of knowledge in such manner as it may determine;

(ii) to prescribe courses of studies to be conducted by it and the constituent colleges/units;

(iii) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons who have been admitted to and have passed its examinations under prescribed conditions;

(iv) to prescribe the terms and conditions of employment of the officers, teachers and other employees of the Institute and to lay down terms and conditions that may be different from those applicable to government servants in general;

(v) to engage, where necessary, persons on contracts of specified duration and to specify the terms of each engagement;

(vi) to confer honorary degrees or other distinctions on approved persons in the manner prescribed;

(vii) to provide for such instruction for persons not being students of the Institute as it may prescribe, and to grant certificates and diplomas to such persons;

(viii) to institute programmes for the exchange of students and teachers between the Institute and other institutes, universities, educational institutions and research organizations, inside as well as outside Pakistan;

(ix) to provide career counselling and job search services to students and alumni;

(x) to maintain linkages with alumni;

(xi) to develop and suggest fund-raising plans to the Board of Director;

(xii) to provide and support the academic development of the faculty of the Institute;

(xiii) to confer degrees on persons who have carried on independent research under prescribed conditions;

(xiv) to accept the examinations passed and the period of study spent by students of the Institute at other universities and places of learning equivalent to such examinations and periods of study in the Institute, as it may prescribe, and to withdraw such acceptance;

(xv) to co-operate with other Universities, public authorities or private organizations, inside as well as outside Pakistan, in such manner and for such purposes as it may prescribe;

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(xvi) to institute Professorships, Associate Professorships, Assistant Professorships and Lectureships and any other posts and to appoint persons thereto;

(xvii) to create posts for research, extension, administration and other related purposes and to appoint persons thereto;

(xviii) to or recognize selected members of the teaching staff of colleges educational institutions admitted to the privileges of the Institute or such other persons as it may deem fit, as Institute Teachers;

(xix) to institute and award financial assistance to students in need, fellowships, scholarships, bursaries, medals and prizes under prescribed conditions;

(xx) to establish teaching constituent colleges, departments, faculties, institutes, museums and other centers of learning for the development of teaching and research, professional and technical training and special studies and to make such arrangements for their maintenance, management and administration as it may prescribe;

(xxi) to provide for the residence of the students of the Institute and the constituent units, to institute and maintain halls of residence and to approve or license hostels and lodging;

(xxii) to maintain order, discipline and security on the campuses of the Institute and the constituent units;

(xxiii) to promote the extra-curricular and recreational activities of such students, and to make arrangements for promoting their health and general welfare;

(xxiv) to demand and receive such fees and other charges as it may determine;

(xxv) to make provision for research, advisory or consultancy services and with these objects to enter into arrangements with other institutions, public or private bodies, commercial and industrial enterprises under prescribed conditions;

(xxvi) to enter into, carry out, vary or cancel contracts;

(xxvii) to receive and manage property transferred and grants, contributions made to the Institute and to invest any fund representing such property, grants, bequests, trusts, gifts, contributions with the approval of the Board of Directors;

(xxviii) to provide for the printing and publication of research and other works; and

(xxix) to do all such other acts as may be requisite or expedient for furtherance of objectives of the Institute as a center of education, learning, research, professional and technical training, special studies, and for safeguarding tangible and intangible cultural heritage.

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5. Institute open to all classes, creeds, etc.—(1) The Institute shall be open to all persons of any gender and of whatever religion, race, creed, class, color or domicile and no person shall be denied privileges of the Institute on these grounds.

(2) The Institute shall admit students from all regions of the country on merit-based regional quota as recommended by the Board of Governors and approved by the Board of Directors.

(3) The Institute will provide free of cost Education to the students of the Low-Income Families. The Level of Low-Income will be recommended by the Board of Governors and approved by the Board of Directors.

(4) The Institute may allow some students on self-finance scheme. This number and the fee will be recommended by the Board of Governors and approved by the Board of Directors.

(5) The Institute, when required, may institute financial aid programmes for students in need, to the extent considered feasible by the Board of Directors given the resources available, so as to enable admission and access to the Institute and the various opportunities provided by it to be based on merit rather than ability to pay.

6. Teaching at the Institute. (1) All recognized teaching, professional and technical training in various courses shall be conducted by the Institute or the schools in the prescribed manner and may Include lectures, tutorials, discussions, seminars, demonstrations, distance learning and other methods of instruction as well as practical work in the laboratories, hospitals, workshops and other governmental or private organizations subject to policies prescribed by the Commission.

(2) The Institute may set up any number of campuses, at such places in Pakistan or abroad as the Board of Directors may determine and with prior approval of Higher Education Commission.

(3) The authority responsible for organizing recognized teaching shall be such as may be prescribed.

CHAPTER-III
OFFICERS OF THE INSTITUTE

7. Principal Officers.

(a) the Chancellor;

(b) the Patron;

(c) the Rector;

(d) the Advisors;

(e) the Pro-Rector for Academics and Research;

(f) the Pro-Rector for Administration and Finance;

(g) the Deans;

(h) the Principals of the constituent colleges/units;

(i) the Chairpersons of the teaching departments;

(j) the Director Admission and Registration;

(k) the Director Finance;

(1) the Director Examinations;

(m) the Director Human Resources; and

(n) such other persons as may be prescribed by the Statutes or Regulations to be the principal officers of the Institute.

8. Chancellor. (1) The President of Pakistan shall be the Chancellor of the Institute.

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(2) The Chancellor shall preside over the convocation of the Institute, in the absence of the Chancellor, the Patron shall preside over the convocation of the Institute.

(3) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

9. Patron. The Chairperson of the Board of Directors shall be the Patron of the Institute.

10. Visitation. (1) The Patron may, in accordance with the terms and procedures as may be prescribed, cause an inspection or inquiry to be made on his own motion or at the request of the Commission in respect of any matter connected with the affairs of the Institute and shall, from time to time, direct any person or review panel to inquire into or carry out inspection of,-

(a) the Institute, its building, laboratories, libraries, and other facilities;

(b) any Institution, department or hostel maintained by the Institute;

(c) the adequacy of financial and human resources;

(d) the teaching, research, curriculum, examination, and other, matters of the Institute; and

(e) such other matters as the Patron may specify.

(2) The Patron shall communicate to the Board of Directors his views with regard to the result of visitation and shall, after ascertaining the views, advise the Board of Directors on the action to be taken by it.

(3) The Board of Directors shall, within such time as may be specified by the Patron, communicate to him such action, if any, as has been taken or may be proposed to be taken upon the results of visitation.

11. Removal from the Board of Governors. (1) The Board of Directors may, upon recommendation of the Review Panel, remove any person except the Rector from the membership of the Board of Governors on the ground that such person,-

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(a) has become of unsound mind; or

(b) has become incapacitated to function as member of the Board of Governors; or

(c) has been convicted by a court of law for an offence Involving moral turpitude; or

(d) has absented himself from two consecutive meetings without just cause; or

(e) has been guilty of misconduct, including use of position for personal advantage any kind, or gross inefficiency in the performance of functions: and

(f) has failed to align with vision & mission of Akhuwat and constitution of Pakistan.

(2) The Board of Directors shall remove any person from the membership of the Board of Governors on a resolution calling for the removal of such person supported by at least three-fourths of the membership of the Board of Directors:

Provided that before passing such resolution the Board of Directors shall provide the member concerned a fair hearing:

Provided further that the provisions of this section shall not be applicable to the Rector in his capacity as a member of the Board of Directors.

12. Rector. (1) There shall be a Rector of the Institute who shall be an eminent academician or a distinguished administrator and shall be appointed on such terms and conditions as may be prescribed.

(2) The Rector shall be the chief executive officer of the Institute responsible for all administrative and academic functions of the Institute and for ensuring that the provisions of this Act, Statutes, Regulations and Rules are faithfully observed to promote the general efficiency and good order of the Institute. The Rector shall have all powers prescribed for this purpose, including administrative control over the officers, teachers, and other employees of the Institute.

(3) The Rector shall, if present, be entitled to attend any meeting of any Authority or body of the Institute.

(4) The Rector, in an emergency requiring immediate action ordinarily not in the competent of the Rector, may take such action and forward, within seventy-two hours, a report of the action taken to the Board of Directors. The Board of Directors may direct such action as is consider appropriate.

(5) The Rector shall also have the following powers, namely,-

(a) to direct teachers, officers and other employees of the Institute to take up such assignments in connection with examination, administration and such other activities the Institute as he may consider necessary for the purposes of the Institute;

(b) to sanction by re-appropriation an amount not exceeding an amount specified by the Board of Directors for an unforeseen item not provided for in the budget and report it to the Board of Directors at the next meeting;

(c) to make appointments of such categories of employees of the Institute and in such manner as may be prescribed by the Statutes;

(d) to suspend, punish and remove, in accordance with prescribed procedure, from service officers, teachers and other employees of the Institute except those appointed by or with the approval of the Board of Directors;

(e) to delegate, subject to such conditions as may be prescribed, any of his powers under this Act to an officer or officers of the Institute; and

(f) to exercise and perform such other powers and functions as may be prescribed.

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(6) The Rector shall preside at the convocation of the Institute in the absence of the Chancellor and the Patron.

(7) The Rector shall present an annual report before the Board of Directors within three months of the close of the academic year. The annual report shall present such information as regards the academic year under review as may be prescribed, including disclosure of all relevant facts pertaining to,-

(a) academics;

(b) research;

(c) administration; and

(d) finances.

(8) The Rector's annual report shall be made available, prior to its presentation before the Board of Governors, to all officers and Institute Teachers and shall be published in such numbers as are required to ensure its wide circulation.

13. Appointment and removal of the Rector. (1) The Rector shall be appointed by the Board of Directors by the procedure as prescribed below,-

(a) a Search Committee for the recommendation of persons suitable for appointment as Rector shall be constituted by the Board of Directors on the date and in the manner prescribed by the Statutes and shall consist of two eminent members of society nominated by the Board of Directors, of whom one shall be appointed the Convener, two members of the Board of Directors, two distinguished institute's Teachers who are not members of the Board of Governors or the Board of Directors, and one academician of eminence not employed by the institute. The two distinguished institute's Teachers shall be selected by the Board of Directors through a process, to be prescribed by Statute that provides for the recommendation of suitable names in general. The Search Committee shall remain in existence till the time of appointment of the next Rector made by the Board of Directors.

(b) the Search Committee shall recommend a panel of three to the Board of Directors for the appointment as Rector:

Provided that the Board of Directors may decline to appoint any of the three persons recommended and seek recommendation of a fresh panel. In the event of a fresh recommendation being sought, the Search Committee shall make a proposal to the Board of Directors in the prescribed manner. BOD shall have the authority to choose any of the three recommended names; and

(c) appointment of the first Rector shall by-pass the procedure as mentioned in clause (a) and (b).

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(2) The Rector shall be appointed for a renewable tenure of four years on terms and conditions prescribed by Statutes. The tenure of an incumbent Rector shall be renewed by the Board of Directors on receipt of its resolution in support of such renewal.

(3) The Board of Directors may, pursuant to a resolution in this behalf passed by three-fourths of its membership, shall remove the Rector on the ground of inefficiency, moral turpitude or physical or mental incapacity or gross misconduct, including misuse of position for personal advantage of any kind:

Provided further that prior to a resolution for the removal of the Rector being voted upon the Rector shall he given an opportunity of being heard.

(4) At any time when the office of the Rector is vacant, or Rector is absent or is unable to perform the functions of his office due to illness or some other cause, the Board of Directors shall ask a Pro-Rector to perform the duties of the Rector in his absence.

14. Advisors. At most two Advisors to Board of Directors shall be appointed by the Board of Directors for a period of four years, further extendable to another term on such terms and conditions as determined by Board of Directors. The Advisors shall advise the Board of Directors on academic and operational issues.

15. Pro-Rectors. (1) There shall be a Pro-Rector (Administration and Finance) of the Institute and shall be appointed on such terms and conditions as may be prescribe of by the Board of Directors.

(2) Subject to the overall supervision of the Rector, the Pro-Rector (Administration & Finance) shall be in charge of the administrative and financial affairs of the Institute and shall formulate and recommend to the Academic Council, the Rector, the Board of Governors and/or the Board of Directors for approval of rules & regulations relating to financial and administrative matters of the Institute.

(3) The Pro-Rector (Administration & Finance) shall have following powers, namely,-

(a) to liaise with government, agencies, local bodies and other authorities in connection with financial and administrative affairs of the Institute;

(b) to administer the financial resources of the Institute;

(c) to administer the residences of the students, teachers, and other staff members of the Institute;

(d) to supervise the extra-curricular and recreational activities of the Institute including the matters of the health and general welfare;

(e) to maintain discipline in the Institute;

(f) to sanctions expenditure provided for the approved budget it accordance with the rules;

(g) to perform such other functions and exercise such other powers as may be entrusted to delegated to him by the Board of Directors or Board of Governors or the Rector;

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(h) to delegate any of his power to appropriate level of management subject to such conditions as may deem fit.

(4) There shall be a Pro-Rector (Academic & Research) of the Institute and shall be appointed on such terms and conditions as may be prescribed by the Board of Directors.

(5) Subject to the overall supervision of the Rector, the Pro-Rector (Academics & Research) shall formulate and recommend to the Academic Council, the Rector, the Board of Governors and/or the Board of Directors for approval rules & regulations relating to the academic and research matters of the Institute.

(6) The Pro-Rector (Academics & Research) shall have following powers,-

(a) to perform such other functions and exercise such other powers as may be entrusted or delegated to him by the Board of Directors or Board of Governors or the Rector; and

(b) to delegate any of his power to appropriate level of management subject to such conditions as may deem fit.

16. Dean. (1) There shall be a Dean of each faculty/institution or centre to be appointed by the Board of Governors on recommendation of the Rector, on such terms and conditions as may be prescribed.

(2) The Dean shall be in-charge of the faculty and shall assist the Rector on the matters related to teaching, research, academic program and extension of other development projects.

(3) Subject to overall supervision of the Rector, the Dean shall formulate and recommend to the Academic Council, rules and regulations relating to academic and research matters of the faculty.

(4) The Dean shall also have the following powers, namely,-

(a) to collaborate with universities, industry and other research organizations;

(b) to formulate recommendations to the Academie Council on the courses of study to be taught in different departments of the faculty;

(c) to co-ordinate the award of fellowships, stipends, medals and prizes; (d) to co-ordinate the teaching and research work of the faculty;

(e) to perform such other functions and exercise such other powers as may be entrusted or delegated to him by the board or the Rector and

(f) to delegate any of his powers to appropriate levels of management subjects to such conditions as he may deem fit.

17. Director Admissions and Registration. (1) There shall be a Director Admissions and Registration of the Institute to be appointed by the Board of Directors on the recommendation of the Board of Governors, on such terms and conditions as may be prescribed.

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(2) The experience as well as the professional and academic qualifications necessary for appointment to the post of the Director Admissions and Registration shall be as may be prescribed.

(3) The Director Admissions and Registration shall be a full-time officer of the Institute and shall,-

(a) look after admission process of all academic programmes and maintain a register of the admitted students;

(b) be the administrative head of the secretariat of the Institute and be responsible for the provision of secretariat support to the Authorities of the Institute;

(c) be the custodian of the common seal and the academic records of the Institute;

(d) maintain a register of registered graduates in the prescribed manner; and

(e) perform such other duties as may be prescribed.

(4) The term of office of the Director Admissions and Registration shall be a renewable period of three years:

Provided that the Board of Directors may on the recommendations of the Board of Governors, terminate the appointment of the Director Admissions and Registration on grounds of inefficiency or misconduct in accordance with prescribed procedure:

Provided further that prior to a resolution for the removal of the Director Admissions and Registration being voted upon, the Director Admissions and Registration shall be given an opportunity of being heard.

18. Director Finance. (1) There shall be a Director Finance of the Institute to be appointed by the Board of Directors on the recommendation of the Board of Directors, on such terms and conditions as may be prescribed.

(2) The experience and the professional and academic qualifications necessary for appointment to the post of the Director Finance shall be as may be prescribed.

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(3) The Director Finance shall be the chief financial officer of the Institute and shall,-

(a) manage the assets, liabilities, receipts, expenditures, funds and investments of the Institute;

(b) prepare the annual and revised budget estimates of the Institute and present them to the Board of Governors or a committee thereof for approval and incorporation in the budget to be presented to the Board of Directors;

(c) ensure that the funds of the Institute are expended on the purposes for which they are provided;

(d) have the accounts of the Institute audited annually to be available for submission to the Board of Directors within six months of the close of the financial year; and

(e) perform such other duties as may be prescribed.

(4) The term of office of the Director Finance shall be a renewable period of three years:

Provided that the Board of Directors may, on the recommendations of the Board of Governors, terminate the appointment of the Director Finance on grounds of inefficiency or misconduct in accordance with prescribed procedure:

Provided further that prior to a resolution for the removal of the Director Finance being voted upon, the Director Finance shall be given an opportunity of being heard.

19. Director Examinations. (1) There shall be a Controller of Examinations, to be appointed by the Board of Directors on the recommendation of the Board of Directors, on such terms and conditions as may be prescribed.

(2) The minimum qualifications necessary for appointment to the post of the Director Examinations shall be as may be prescribed.

(3) The Director Examinations shall he a full-time officer of the Institute and shall he responsible for all matters connected with the conduct of examinations and perform such other duties as may be prescribed.

(4) The Director Examinations shall be appointed for a renewable term of three years:

Provided that the Board of Directors may, on the recommendations of the Board of Governors, terminate the appointment of the Director Examinations on grounds of inefficiency or misconduct in accordance with prescribed procedure.

Provided further that prior to a resolution for the removal of the Director Examinations being voted upon, the Director Examinations shall be given an opportunity of being heard.

20. Director Planning and Development. (1) There shall be a Director Planning & Development of the Institute to be appointed by the Board of Directors on the recommendation of the Board of Governors for a period of three years (once renewable) on such terms & conditions as may be prescribed.

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(2) The minimum experience as well as the professional and academic qualifications necessary for the appointment to the post of Director Planning & Development shall be prescribed.

(3) The Director Planning & Development shall be responsible for all matters connected with planning and development and perform such other duties as may be prescribed.

(4) The Director Planning & Development shall,-

(a) Prepare short- and long-term plans and development programs to meet vision, goals and priorities set by the Institute management/Board of Directors;

(b) Conduct comprehensive review, assessment, and analysis of development planning process appraisal, selection, implementation, monitoring and mechanism;

(c) Develop a strategy for improving development planning processes and mechanisms based on findings of the situation analysis; project identification,.

(d) Provide technical support in developing project proposals and PCs-1, for the Institute;

(e) Preparation of the PC-I, PC-II, PC-III, PC-IV, and PC-V;

(f) Preparation of cash work and activity plan;

(g) Preparation of quarterly expenditure statements;

(h) Preparation of monthly and quarterly progress reports;

(i) To coordinate with works, purchase, store units and accounts; and

(j) To communicate/submit reports, plans and projects to different donors.

(5) The Director Planning and Development shall be appointed for a renewable term of three years:

Provided that the Board of Directors may on the recommendations of Board of Governors, terminate the services of Director Planning and Development on grounds of inefficiency or misconduct in accordance with the prescribed procedure:

Provided further that prior to a resolution for the removal of the Director Planning and Development being voted upon, the Director Planning and Development she be given an opportunity of being heard.

21. Director Human Resources (HR). (1) There shall be a Director Human Resources (HR) of the Institute to be appointed by the Board of Directors on the recommendation of Board Governors for a renewable period of three years on such terms and conditions as may be prescribe.

(2) The minimum experience as well as the professional and academic qualifications necessary for the appointment to the post of Director Human Resources shall be as may be prescribed.

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(3) Director Human Resources shall,

(a) Develop and implement policies, procedures, and strategies for the recruitment and selection of qualified faculty, staff, and administrators in accordance with applicable laws and regulations;

(b) Ensure compliance with equal employment opportunity and non-discrimination laws throughout the recruitment and selection processes;

(c) Collaborate with hiring managers to establish appropriate selection criteria, conduct interviews, and make recommendations for final selection decisions;

(d) Establish and enforce policies and procedures to promote positive employee relations, fair treatment, and a productive work environment within the university;

(e) Handle employee grievances, complaints, and disciplinary actions in accordance with established policies, ensuring due process and adherence to legal requirements;

(f) Provide guidance and support to managers and supervisors in addressing employee relations issues and resolving conflicts in a manner that upholds the university's values and legal obligations;

(g) Shall develop, implement, and administer a comprehensive compensation and benefits program that adheres to applicable laws, regulations, and contractual obligations;

(h) Conduct market research and analysis to ensure competitive and equitable compensation practices and benefit offerings within the university;

(i) Shall oversee the administration of payroll, employee benefits enrollment, and related processes, ensuring accuracy, confidentiality, and compliance with applicable laws and regulations;

(j) Establish and implement performance management systems and processes to evaluate employee performance, provide feedback, exit interviews and support professional growth and development within the university;

(k) Collaborate with managers and supervisors to set performance expectations, establish goals, and provide necessary training and development opportunities aligned with the university's strategic objectives;

(1) Coordinate performance appraisal processes and ensure timely completion of performance reviews in accordance with established policies and procedures;

(m) Develop, review, and update HR policies and procedures within the university, ensuring compliance with relevant laws, regulations, and contractual obligations;

(n) Collaborate with academic departments and stakeholders to identify training and development needs within the university and design programs to enhance employee skills and knowledge; and

(o) Supervise the process of election, appointment or nomination of members to the various authorities and other bodies with the collaboration of the Director Admissions and registration in the prescribed manner.;

(4) The Board of Directors may, on the recommendations of the Board of Governors, terminate the appointment of the Director Human Resources on grounds of inefficiency or misconduct in accordance with prescribed procedure:

Provided further that prior to a resolution for the removal of the Director Human Resources being voted upon, the Director Human Resources shall be given an opportunity of being heard.

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22. Director Quality Enhancement Cell (QEC). (1) There shall be a Director Quality Enhancement Cell (QEC) of the Institute to be appointed by the Board of Directors on the recommendation of Board of Governors for a renewable period of three years on such terms & conditions as may be prescribed.

(2) The minimum experience as well as the professional and academic qualifications necessary for the appointment to the post of Director Quality Enhancement Cell (QEC) shall be as may be prescribed.

(3) The Director Quality Enhancement Cell (QEC) shall be responsible to,-

(a) review the quality standards and the quality of teaching and learning in each subject area;

(b) review the academic association with other institutions in terms of effective management of standards and quality of programs;

(c) defining clear and explicit standards as points of reference to the review to be carried art. It should also help the employees to know as to what they could expect from candidates;

(d) developing qualifications framework by setting out the attributes and abilities that can be expected from the holder of a qualification, *i.e*. undergraduate and graduate programs;

(e) developing program specifications. These are standards set of information clarifying what knowledge, understanding, skills and other attributes a student will have developed on successfully completing a specific program;

(f) developing quality assurance processes and methods of evaluation to affirm that the quality of provision and the standard of awards are being maintained and to foster curriculum, subject and staff development together with research and other scholarly activities;

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(g) ensure that the Institute's quality assurance procedures are designed to fit in with the arrangements in place nationally and internationally for maintaining and improving & quality of Higher Education;

(h) developing procedures and processes, monitoring & evaluation systems, and standards for the following,

i. the Approval of new program;

ii. annual monitoring and evaluation including program monitoring, faculty monitoring and student perceptions;

iii. departmental review;

iv. student feedback; and

v. employer feedback;

vi. quality assurance of undergraduate, graduate & doctoral programs;

vii. institutional assessment and performance evaluation;

viii. program specifications;

ix. qualification framework; and

x. Director Quality Enhancement Cell (QEC) shall be the member of all statutory bodies/committees of the Institute.

(4) The Board of Directors may on the recommendations or advice of Board of Governors, terminate the services of Director Quality Enhancement Cell (QEC) on grounds of inefficiency or misconduct in accordance with the prescribed procedure:

Provided that prior to a resolution for the removal of the Director Quality Enhancement Cell being voted upon the Director Quality Enhancement Cell shall be given an opportunity of being heard.

23. Director of Research, Innovation and Commercialization (ORIC). (1) There shall be a Director (ORIC) of the Institute to be appointed by the Board of Directors on the recommendation of Board of Governors for a renewable period of three years on such terms and conditions as may be prescribed.

(2) The minimum experience as well as the professional and academic qualifications necessary for the appointment to the post of Director (ORIC) shall be as may be prescribed.

(3) The Director (ORIC) shall,-

(a) manage and enhance the research activities of the Institute, develop research policies and priorities, work for fund raising for research, mobilize faculty, business community and industry for research commercialization and serve as an effective advocate for research with the university/institute and to its broader community of stakeholders and supporters;

(b) supervise all aspects of the operation of the Office for Research including research administration (budgeting, auditing, accounting, human resources, management & maintenance of facilities and equipment, implementation of research contracts and human resources);

(c) develop programs and activities that will increase funding for research from all public and private sources, establish and maintain excellent relationships with donors and private sources, oversee proposals development and submission;

(d) promote the development of public-private partnerships in support of Institute research, link the Institute's research community with the needs and priorities of the corporate sector;

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(e) develop opportunities for applied research and explore opportunities for technology transfer and commercialization of Institute research (including incubators and research parks);

(f) be responsible to monetize royalty streams from licenses;

(g) collaborate with the principal liaison for technical marking and licensing on the commercialization of the Institute's IP in coordination with other relevant department and office-work in close liaison with the office of research and development, planning and development; and

(h) institute's technology park.

(4) The Board of Directors may on the recommendations/advice of Board of Governors, terminate the services of Director (ORIC) on grounds of inefficiency or misconduct in accordance with the prescribed procedure.

CHAPTER IV
AUTHORITIES OF THE INSTITUTE

24. Authorities.- (1) The following shall be the Authorities of the Institute, namely,-

(a) Authorities established by this Act,-

(i) the Board of Directors;

(ii) the Board of Governors; and

(iii) the Academic Council.

(b) Authorities to be established by the Statutes,-

(i) Board of Advanced Studies and Research;

(ii) Board of Studies;

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(iii) Selection Board;

(iv) Finance and Planning Committee;

(v) Search Committee for the appointment of the Rector;

(vi) Representation Committees for appointment as prescribed;

(vii) Quality Enhancement Committee; and

(viii) Discipline Committee.

(2) The Board of Directors, the Board of Governors and the Academic Council may set up such other committees or sub-committees, by whatever name described, as are considered desirable through Statutes or Regulations. Such committees or sub-committees shall be Authorities of the Institute for the purposes of this Act.

25. Board of Directors. (1) The Akhuwat Board of Directors is the body responsible for the entire governance of the Institute.

(2) The Board of Directors shall meet at least twice in a calendar year.

(3) Service on the Board of Directors shall be on honorary basis. However, actual expenses may be reimbursed as prescribed.

(4) Unless otherwise prescribed by this Act, all decisions of the Board of Directors shall be taken on the basis of the opinion of a majority of the members present. In the event of the members being evenly divided on any matter the person presiding over the meeting shall have a casting vote.

(5) The quorum for a meeting of the Board of Directors shall be two-thirds of its membership, a fraction being counted as one.

26. Powers and functions of the Board of Directors. The Board of Directors shall have the power of supervision over the Institute and shall hold the Rector and the Authorities accountable for all the functions of the Institute. The Board of Directors shall have all powers of the Institute not expressly vested in an Authority or officer by this Act and all other powers not expressly mentioned by this Act that are necessary for the performance of its functions.

(2) Without prejudice to the generality of the foregoing powers, the Board of Directors shall have the following powers,-

(a) to approve the proposed annual plan of work, the annual and revised budgets, the annual report and the annual statement of account;

(b) to hold, control and lay down policy for the administration of the property, funds and investments of the Institute, including the approval of the sale and purchase or acquisition of immovable property;

(c) to oversee the quality and relevance of the Institute's academic programmes and to review the academic affairs and ensure its alignment with vision & mission of Akhuwat;

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(d) to approve the appointment of the Deans, Professors, Associate professors and such other senior faculty and senior administrators as may be prescribed;

(e) to institute schemes, directions and guidelines for the terms and conditions of Appointment of all officers, teachers and other employees of the Institute;

(f) to approve strategic plans;

(g) to approve financial resource development plans of the Institute;

(h) to consider the drafts of Statutes and Regulations proposed by the Board of Governors and the Academic Council and deal with them in the manner as provided in sections 31 and 32, as the case may be:

Provided that the Board of Directors may frame a Statute or Regulation on its own initiative and approve it after calling for the advice of the Board of Governors or the Academic Council as the case may be;

(i) to annul by order in writing the proceedings of any Authority or officer if the Board of Directors is satisfied that such proceedings are not in accordance with the provisions of this Act, Statutes or Regulations after calling upon such Authority or officer to show cause why such proceedings should not be annulled;

(j) to approve the removal of any member of the Board of Governors in accordance with the provisions of this Act;

(k) to make appointment of members of the Board of Governors, other than *ex-officio* members, in accordance with the provisions of this Act;

(1) to approve appointment of the members of the Academic Council, other than *ex-officio* members, in accordance with the provisions of this Act;

(m) to appoint Emeritus Professors on such terms and conditions as may be prescribed;

(n) to remove any person from the membership of any Authority if such person,-

(i) has become of unsound mind; or

(ii) has become incapacitated to function as member of such Authority; or

(iii) has been convicted by a court of law for an offence involving moral turpitude; and

(o) to regulate the use of the common seal of the Institute.

(3) The Board of Directors may, subject to the provisions of this Act delegate all or any of the powers and functions of any Authority, officer or employee of the Institute at its main campus, to any Authority, committee, officer or employee at its additional campus. for the purpose of exercising such powers and performing such functions in relation to such additional campus, and for this purpose the Board of Directors may create new posts or positions at the additional campus.

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27. Visitation. The Board of Directors may, in accordance with the terms and procedures as may be prescribed, cause an inspection to be made in respect of any matter connected with the Institute.

28. Board of Governors. (1) There shall be a Board of Governors of the Institute consisting of the following,-

(a) the Patron;

(b) the Rector;

(c) the Pro Rectors;

(d) the Deans of the Faculties of the Institute;

(e) one member of the Government not below the rank of Additional Secretary from the Ministry of Higher Education or any other department relevant to the special focus of the Institute;

(f) one faculty member from each cadre (professor, associate professor, assistant professor and lecturer) from different departments, who are not members of the Board of Directors, to be elected by the Institute Teachers in accordance with procedure to be prescribed by the Board of Directors;

(g) Principals of the constituent colleges/units;

(h) the Director Admissions and Registration;

(i) the Director (QEC);

(j) the Director (ORIC);

(k) the Director (P&D);

(1) the Director Finance;

(m) the Director Examinations; and

(n) one person from amongst the alumni of the Institute.

(2) The Patron will be the Chairperson of the Board of Governors.

(3) Members of the Board of Governors, other than *ex-officio* members, shall hold office for three years.

(4) As regards the faculty members described in clause (f) and (n) of sub-section (1) the Board of Directors may, as an alternative to elections, prescribe a procedure for proposal of a panel of names by the Representation Committee set up in terms of section 32. Appointment of persons proposed for the Representation Committee may be made by the Board of Directors.

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(5) The quorum for a meeting of the Board of Governors shall be one-half of the total number of members, a fraction being counted as one.

(6) The Board of Governors shall meet at least once in each quarter of the year.

29. Powers and duties of the Board of Governors. (1) The Board of Governors shall be the executive body of the Institute and shall, subject to the provisions of this Act and the Statutes, exercise general supervision over the affairs and management of the Institute.

(2) Without prejudice to the generality of the foregoing powers, and subject to the provisions of this Act, the Statutes and directions of the Board of Directors, the Board of Governors shall have the following powers,-

(a) to consider the annual report, the annual and revised budget estimates and to submit these to the Board of Directors;

(b) to transfer and accept transfer of movable property on behalf of the Institute;

(c) to enter into, vary, carry out and cancel contracts on behalf of the Institute;

(d) to cause proper books of account to be kept for all sums of money received and expended by the Institute and for the assets and liabilities of the Institute;

(e) to invest any money belonging to the Institute including any unapplied income in any of the securities described in section 20 of the Trusts Act, 1882 (Act II of 1882). or in the purchase of immovable property or in such other manner, as it may prescribe, with the like power of varying such investments;

(f) to receive and manage any property transferred, and grants, bequests, trust, gifts, donations, endowments, and other contributions made to the Institute;

(g) to administer any funds placed at the disposal of the Institute for specified purposes;

(h) to provide the buildings, libraries, premises, furniture, apparatus, equipment and other means required for carrying out the work of the Institute;

(i) to establish and maintain halls of residence and hostels or approve or license hostels or lodgings for the residence of students;

(j) to recommend to the Board of Directors admission of educational institutions to the privileges of the Institute and withdraw such privileges;

(k) to arrange for the inspection of schools and the departments;

(1) to institute Professorships, Associate Professorships, Assistant Professorships, Lectureships, and other teaching posts or to suspend or to abolish such posts;

(m) to create, suspend or abolish such administrative or other posts as may be necessary;

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(n) to prescribe the duties of officers teachers and other employees of the Institute;

(o) to report to the Board of Directors on matters with respect to which it has been asked to report;

(p) to appoint members to various Authorities in accordance with the provisions of this Act;

(q) to propose drafts of Statutes for submission to the Board of Directors;

(r) to regulate the conduct and discipline of the students of the Institute;

(s) to take actions necessary for the good administration of the Institute in general and to this end exercise such powers as are necessary;

(t) to recommend the appointment of the Deans, Professors, Associate professors and such other senior faculty and senior administrators to the Board of Directors as may be prescribed;

(u) to make appointment of members of the Academic Council, other than ex-office members, in accordance with the provisions of this Act;

(v) to appoint Emeritus Professors on such terms and conditions as may be prescribed;

(w) to delegate any of its powers to any Authority or officer or a committee; and

(x) to perform such other functions as have been assigned to it by the provisions of this Act or may be assigned to it by the Statutes.

30. Academic Council. (1) There shall be an Academic Council of the Institute consisting of the following,-

(a) the Rector who shall be its Chairperson;

(b) the Pro Rector (Admin and Finance);

(c) the Pro Rector (Academic and Research);

(d) the Deans of Faculties and such Heads of departments as may be prescribed;

(e) five members representing the departments, institutes, and the constituent schools to be elected in the manner prescribed by the Board of Directors;

(f) five Professors including Emeritus Professors;

(g) the Director Admissions and Registration;

(h) the Director (QEC);

(i) the Director (QRIC);

(j) the Director Examinations; and

(k) the Librarian.

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(2) The Board of Governors shall appoint the members of the Academic Council, other than the ex-officio and the elected members, on the recommendation of the Rector:

Provided that as regards the five professors and the members representing the departments, institutes and the constituent schools, the Board of Governors may, as an alternative to elections, prescribe a procedure for proposal of a panel of names by the Representation Committee set up in terms of section 28. Appointment of persons proposed by the Representation Committee may be made by the Board of Directors on the recommendation of the Rector.

(3) Members of the Academic Council shall hold office for three years.

(4) The Academic Council shall meet at least once in each quarter.

(5) The quorum for meetings of the Academic Council shall be one half of the total number of members, a fraction being counted as one.

31. Powers and Functions of the Academic Council. The Academic Council shall be the principal academic body of the institute and shall, subject to the provisions of this Act and the Statutes, have the power to lay down proper standards of instruction, research and examinations and to regulate and promote the academic life of the institute and the schools,-

(a) approve the policies and procedures pertaining to the quality of academic programmes;

(b) approve academic programmes;

(c) approve the policies and procedures pertaining to student related functions including admissions, expulsions, punishments, examinations and certification;

(d) approve the policies and procedures assuring quality of teaching and research;

(e) propose to the Board of Governors schemes for the constitution and organization of Faculties, teaching departments and Boards of Studies;

(f) appoint paper setters and examiners for all examinations of the Institute after receiving panels of names from the relevant authorities;

(g) institute programmes for the continued professional development of Institute Teachers at all levels;

(h) recognize the examinations of other universities or examining bodies as equivalent to the corresponding examinations of the Institute;

(i) regulate the award of studentships, scholarships, exhibitions, medals and prizes;

(j) frame Regulations for submission to the Board of Governors;

(k) prepare an annual report on the academic performance of the Institute; and

(1) perform such functions as may be prescribed by Regulations.

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32. Representation Committees. (1) There shall be a Representation Committee constituted by the Board of Directors through Statute for recommendation of persons for appointment to the Board of Directors in accordance with the provisions of section 25.

(2) There shall also be a Representation Committee constituted by the Board of Directors through Statute for the recommendation of persons for appointment to the Board of Governors and the Academic Council in accordance with the provisions of sections 25 and 28.

(3) Members of the Representation Committee for appointments to the Board of Governors shall consist of the following,-

(a) three members of the Board of Directors who are not Institute Teachers;

(b) two persons nominated by the Institute Teachers from amongst themselves in the manner prescribed;

(c) one person from the academic community, not employed by the Institute, at the level of professor or school principal to be nominated by the Institute Teachers in the manner prescribed; and

(d) one eminent citizen with experience in administration, philanthropy, development work, law or accountancy to be nominated by the Board of Directors.

(4) The Representation Committee for appointments to the Academic Council shall consist of the following,-

(a) two members of the Board of Directors who are not Institute Teachers; and

(b) three persons nominated by the Institute Teachers from amongst themselves in the manner prescribed.

(5) The tenure of the Representation Committees shall be three years:

Provided that no member shall serve for more than two consecutive terms.

(6) The procedures of the Representation Committees shall be as may be prescribed.

(7) There may also be such other Representation Committees set up by any of the other Authorities of the Institute as are considered appropriate for recommending persons for appointment to the various Authorities and other bodies of the Institute.

33. Appointment of committees by certain Authorities. (1) The Board of Directors, the Board of Governors, the Academic Council and other Authorities may, from time to time, appoint such standing, special or advisory committees, as they may deem fit, and may place on such committee persons who are not members of the Authorities appointing the Committees.

(2) The constitution, functions, and powers of the Authorities for which no specific provision has been made in this Act shall be such as may be prescribed by Statutes or Regulations.

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CHAPTER-V
STATUTES, REGULATIONS AND RULES

34. Statutes. (1) Subject to the provisions of this Act, Statutes, may be made to regulate or prescribe all or any of the following matters,-

(a) the contents of and the manner in which the annual report to be presented by the Rector before the Board of Governors and the Board of Directors shall be prepared;

(b) the Institute fees and other charges;

(c) the constitution of any pension, insurance, gratuity, provident fund and benevolent fund for Institute employees;

(d) the scales of pay and other terms and conditions of service officers, teachers and other institute employees;

(e) the maintenance of the register of registered graduates;

(f) admission of educational institutions to the privileges of the Institute and the withdrawal of such privileges;

(g) the establishment of faculties, departments, institutes, schools and other academic divisions;

(h) conditions under which the Institute may enter into arrangements with other institutions or with public bodies for purposes of research and advisory services;

(i) conditions for appointment of Emeritus Professors and award of honorary degrees;

(j) efficiency and discipline of Institute employees;

(k) the constitution and procedure to be followed by Representation Committees in carrying out functions in terms of this Act;

(1) the constitution and procedure to be followed by the Search Committee for appointment of the Rector;

(m) constitution, functions and powers of the Authorities of the Institute; and

(n) all other matters which by this Act are to be or may be prescribed or regulated by Statutes.

(2) The draft of Statutes shall be proposed by the Board of Governors to the Board of Directors which may approve or pass with such modifications as the Board of Directors may think fit or may refer back to the Board of Governors, as the case may be, for reconsideration of the proposed draft:

Provided that Statutes concerning any of the matters mentioned in clauses (a) and (1) of sub-section (1) shall be initiated and approved by the Board of Directors, after seeking the views of the Board of Governors:

Provided further that the Board of Directors may initiate respect to any matter in its power or with respect to which a Statute may be framed in terms of this Act and approve such Statute after seeking the views of the Board of Governors.

35. Regulations. (1) Subject to the provisions of this Act and the Statues, the Academic Council may make Regulations, the courses of study for degrees, diplomas and certificates of the Institute,-

(a) the manner in which the teaching referred to in sub-section (1) of section 6 shall be organized and conducted;

(b) the admission and expulsion of students to and from the Institute;

(c) the conditions under which students shall be admitted to the courses and the examinations of the Institute and shall become eligible for the award of degrees, diplomas and certificates;

(d) the conduct of examinations;

(e) conditions under which a person may carry on independent research to entitle him to a degree;

(f) the institution of fellowships, scholarships, exhibitions, medals and prizes;

(g) the use of the Library;

(h) the formation of Faculties, departments and Board of Studies; and

(i) all other matters which by this Act or the Statutes are to be or may be prescribed by Regulations:

Provided that Regulations regarding or incidental to matters contained in sub-clauses (1) and (h) shall not be submitted to the Board of Directors without the prior approval of the Board of Governors.

(2) Regulations shall be proposed by the Academic Council and shall be submitted to the Board of Directors which may approve them or withhold approval or refer them back to the Academic Council for reconsideration. A Regulation proposed by the Academic Council shall not be effective unless it receives the approval of the Board of Directors.

36. Amendment and repeal of Statutes and Regulations. The procedure for adding to, amending or repealing the Statutes and the Regulations shall be the same as that prescribed respectively for framing or making Statutes and Regulations.

37. Rules. (1) The Authorities and the other bodies of the Institute may make rules, consistent with this Act, Statutes or the Regulations, to regulate any matter relating to the affairs of the Institute which has not been provided for by this Act or that is not required to be regulated by Statutes or Regulations, including rules to regulate the conduct of business and the time and place of meetings and related matters.

(2) Rules shall become effective upon approval by the Board of Governors.

CHAPTER VI
INSTITUTE FUND

38. Institute Fund. The Institute shall have a Fund to which shall be credited its income from fees if any, charges, donations, trusts, bequests, endowments, contributions, grants and all other sources.

39. Audits and accounts. (1) The accounts of the Institute shall be maintained in such form and in such manner as may be prescribed.

(2) The teaching departments, constituent colleges and institutes and all other bodies designated as such by the Board of Governors in terms of Statutes shall be independent cost centers of the Institute

with authority vested in the head of each cost center to sanction expenditure out of the budget allocated to it:

Provided that re-appropriation from one head of expenditure to another may be made by the head of a cost center in accordance with and to the extent prescribed by the Statutes.

(3) All funds generated by a or other unit of the Institute through consultancy, research or other provision of teaching department, constituent college service shall be made available without prejudice to the budgetary allocation otherwise made, after deduction of overheads in the manner and to the extent prescribed by Statute, to the teaching department, constituent school or other unit for its development. A part of the funds so generated may be shared with the Institute Teachers or researchers in charge of the consultancy, research or service concerned in the manner and to the extent prescribed by Statute.

(4) No expenditure shall be made from the funds of the Institute, unless a bill for its payments has been issued by the head of the cost center concerned in accordance with the relevant Statutes and the Director Finance has verified that the payment is provided for in the approved budget of the cost center, subject to the authority to re-appropriate available to the head of the cost center.

(5) Provision shall be made for an internal audit of the finances of the Institute.

(6) Without prejudice to the requirement of audit by an auditor appointed, the annual audited statement of accounts of the Institute shall be prepared in conformity with the Generally Accepted Accounting Principles (GAAP) by a reputed firm of Chartered Accountants and signed by the Director Finance.

(7) The observations of the Auditor If any, together with such annotations as the Director Finance may make, shall be considered by the Board of Governors and shall be placed before the Board of Directors within six months of closing of the financial year.

CHAPTER-VII
GENERAL PROVISIONS

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40. Opportunity to show cause. Except as otherwise provided by law no officer, teacher or other employee of the Institute holding a permanent post shall be reduced in rank, or removed or compulsorily retired from service for cause arising out of any act or omission on the part of the person concerned unless he/she has been given a reasonable opportunity of showing cause against the action proposed to be taken.

41. Appeal to the Board of Governors and the Board of Directors. Where an order is passed punishing any officer (other than the Rector), teacher or other employee of the Institute or altering or interpreting to his disadvantage the prescribed terms or conditions of his service, he shall, where the order is passed by officer or teacher of the Institute other than the Rector, have the right to appeal to Rector against the order, and where the order is passed by the Rector, have the right to appeal to the Board of Governors against the order.

42. Service of the Institute. (1) All persons employed by the Institute in accordance with the terms and conditions of service prescribed by Statutes shall be persons in the service of the Institute.

(2) An officer, teacher, or other employee of the Institute shall retire from service on the attainment of such age or tenure of service as may be prescribed.

43. Benefits and insurance. The Institute shall constitute for the benefit of its officers, teachers and other employees' schemes, as may be prescribed, for the provision of post-employment benefits as well as health and life insurance while in service.

44. Commencement of term of office of members of Authority. (1) When a member of a newly constituted Authority is elected, appointed, or nominated, his term of office as fixed under this, Act, shall commence from such date as may be prescribed.

(2) Where a member who has accepted any other assignment or for any other similar reason remains absent from the Institute for a period of not less than six months he shall be deemed to have resigned and vacated his seat.

45. Filling of casual vacancies in Authorities. Any casual vacancy among the members of any Authority shall be filled, as soon as conveniently may be, in the same manner and by the same person or Authority that had, appointed the member whose place has become vacant and the person appointed to the vacancy shall be a member of such Authority for the residue of the term for which the person whose place he fills would have been a member.

46. Flaws in the constitution of Authorities. Where there is a flaw in the constitution of an Authority, as constituted by this Act, the Statutes or the Regulations on account of the abolition of a specified office or because an organization, institution or other body outside the Institute has been dissolved or has ceased to function, or because of some other similar reason, such flaw shall be resolved in such manner as the Board of Directors may direct.

47. Proceedings of Authorities not invalidated by vacancies. No act, resolution or decision of any Authority shall be invalid by reason of any vacancy on the Authority doing, passing, or making it or by reason of any want of qualification or invalidity in the election, appointment or nomination of any de facto member of the Authority, whether present or absent.

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48. First Statutes and Regulations. Notwithstanding anything to the contrary contained in this Act, the President of Pakistan shall promulgate the First Statues and Regulations which shall be deemed to be Statutes and Regulations framed under sections 34 and 35 and shall continue to remain in force until amended or replaced or till such time as new Statutes and Regulations are framed in accordance with the provisions of this Act.

49. Removal of difficulty. (1) If any question arises as to the interpretation of any of the provisions of this Act, it shall be placed before the Board of Directors whose decision thereon shall be final.

(2) If any difficulty arises in giving effect to any of the provisions of this Act, the Board of Directors may make such order after obtaining the views of the Board of Governors, not inconsistent with the provisions of this Act, as may appear to him to be necessary for removing the difficulty.

(3) Where this Act makes any provision for anything to be done but no provision or no sufficient provision has been made as respects the authority, by whom, or the time at which, or the manner in which, it shall be done, then It shall be done by such authority, at such time, or in such manner as the Board of Directors may direct after obtaining the views of, the Board of Directors.

50. Indemnity. No suit of legal proceedings shall lie against the Government, the Institute or any Authority, officer or employee of the Government or the Institute or any person in respect of anything which is done in good faith under this Act.

51. Discipline Committee. (1) The Discipline Committee shall consist of,-

(a) Chairperson of the Committee to be nominated by the Rector;

(b) three teachers to be nominated by the Academic Council;

(c) the officer in-charge of students affairs, by whatever name called, as member who shall also act as Secretary of the Discipline Committee; and

(d) Registrar or his deputy.

(2) The term of office of the members of the Committee, other than *ex-officio* members, shall be two years.

(3) The quorum for a meeting of the Discipline Committee shall be two-third of the total number of members, fraction being counted as one.

(4) The functions of the Discipline Committee shall be to,-

(a) to examine and decide complaints referred to it by a head of a department or a competent body or forum against the conduct and behavior of students;

(b) to propose Regulations to the Academic Council relating to the conduct of students, maintenance of discipline and breach of discipline; and

(c) to perform such other functions as may be prescribed.

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RGN. Dated. 05-05-2026